

415.50. The statute provides in relevant part: "A summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that . . . : [¶] (1) A cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action." (Code Civ. Proc. § 415.50(a)(1) [emphasis added].)

Cruz argues that service by publication was improper because Plaintiff had "access" to her home address. (Cruz Decl. ¶ 1.) Service by publication was ordered, however, because Plaintiff filed a declaration showing its process server made five attempts to personally serve her at her home address (the Property where Cruz concedes service was proper) at different times of the day and on different days, and that the process server was unable to locate and serve her there. (Isherwood Opp. Decl. ¶ 3 and Exh. A [attaching Isherwood Decl. filed 1/25/2024 and Exhs. A and B re diligent service attempts, mailing of November 13, 2023 notice of acknowledgment, summons and complaint].) The application for service by publication was accompanied by evidence that the only available address Plaintiff had for Cruz was the Property despite attempts to locate alternative addresses for her where service might be attempted. (*Id.*)

Plaintiff was only required to show it exercised "reasonable" diligence to serve Defendant personally. Defendant has cited no authority or evidence that Plaintiff's efforts to serve her as attested in Isherwood Opposition Declaration, incorporating his prior declaration in support of the application to serve by publication, were legally or factually insufficient to show she could not be served "with reasonable diligence" at the only address known for Cruz. This satisfied Code of Civil Procedure § 415.50 to authorize service by publication. (*See also Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1318-1319 [affirming denial of § 473.5 motion where service was made by publication, and defendants' declarations were insufficient to show lack of notice was not caused by defendants' avoidance or inexcusable neglect].)

Cruz does not argue that there were other addresses where service should have been attempted other than the Property address. Cruz has not directed the Court to any deficiency in the application for the Publication Order. Cruz has not cited any authority to demonstrate that service by publication pursuant to the Publication Order was invalid under the circumstances or that there was any defect in the filed proof of service by publication. (Code Civ. Proc. § 415.50.) The default and default judgment are not void on that ground, and the Court **denies** Cruz relief based on the judgment allegedly being void.

C. Quash Service under Code of Civil Procedure § 418.10

Cruz also moves to quash service of the summons on her under Code of Civil Procedures § 418.10. The only ground she cites is that the Court lacks jurisdiction over her. (Mtn. pp. 6-8.) Cruz contends the Court did not obtain jurisdiction over her because service on her by publication was invalid, an argument the Court has rejected for the reasons set forth above. The Court finds service by publication pursuant to the Publication Order was proper and effectuated valid service under Code of Civil Procedure § 415.50. The Court also **denies** the motion to quash service under Code of Civil Procedure § 418.10 for these reasons.

2. 9:00 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
*HEARING ON MOTION IN RE: CONTEST ADGFS
FILED BY: WILLIAMS, LINDA
TENTATIVE RULING:

Before the Court is Defendants Linda Williams and Compass California II, Inc.'s Motion to Contest Cross-Defendants OHD, Inc., DBA Keller Williams of East County and Johnny Hoang's Application for Order Determining Good Faith Settlement.

Cross-Defendants request judicial notice of the Zillow Price and Sale History of 11 Halten Ct., Pleasant Hill, California ("Zillow Report") citing Evidence Code section 452 subdivisions (d)(1) and (h). Subdivision (d)(1) allows for the judicial notice of records of any court of this state. The Zillow Report is not such a document.

Subdivision (h) allows for judicial notice of facts and propositions "that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." Judicial notice under this subdivision is meant to "cover facts which are not reasonably subject to dispute and are easily verified ... [such as] facts which are widely accepted as established by experts and specialists in the natural, physical, and social sciences which can be verified by reference to treatises, encyclopedias, almanacs and the like or by persons learned in the subject matter." (*Gould v. Maryland Sounds Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1145.) "Simply because information is on the Internet does not mean that it is not reasonably subject to dispute." (*Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605 fn.10.) The Zillow report does not qualify under this subdivision either.

Cross-Defendants Request for Judicial Notice is **denied**.

Factual and Procedural Background

This action relates to issues surrounding the purchase of residential property located at 11 Halten Court (the "Property") by Plaintiffs in March 2022. Defendant Linda Williams was the seller's real estate agent for the transaction. Ms. Williams was employed by Defendant California Compass II, Inc. at all relevant times. (Ms. Williams and Compass California will be referred to as the "Compass Defendants".) The gist of the allegations relates to claims of defects in the Property related to water intrusion and determining who was responsible for disclosing issues related thereto.

The operative First Amended Complaint was filed on May 10, 2024, asserting intentional misrepresentation, negligence, and unfair competition (B&P 17200) claims. On March 17, 2025, a Doe Amendment was filed adding RW Williams as a Defendant and asserting only the third cause of action for unfair competition against it. RW Williams is alleged to have performed some of the 'cover up' work which concealed the underlying problems at issue in this matter.

The Compass Defendants filed a cross-complaint for equitable indemnity and contribution against Cross-Defendants OHD, Inc. (dba Keller Williams of East County) and Johnny Hoang on June 5, 2025. Keller Williams and Mr. Hoang were Plaintiff/Buyer's agents during the sale of the Property. They thereafter filed a cross-complaint against Cross-Defendant HomeGuard on July 11, 2025. It is alleged

that HomeGuard conducted a home inspection and roof inspection on the Property at the behest of Linda Williams.

On November 7, 2025, Cross-Defendants Keller Williams and Mr. Hoang (“Settling Parties”) filed an application for order determining good faith settlement. On December 1, 2025, the Compass Defendants filed a motion to contest the application for good faith determination. On December 2, 2025, Cross-Defendant HomeGuard filed a ‘joinder’ to the motion to contest.

Procedure for Determination of Good Faith Settlement

In accordance with California Code of Civil Procedure (“CCP”) §877.6, “a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order.” (CCP §877.6(a)(2) emphasis added.) “The application shall indicate the settling parties, and the basis, terms, and amount of the settlement.” (*Ibid.*) Thereafter, a nonsettling party may file a notice of motion to contest the good faith of the settlement. (*Ibid.*)

Standard

Code of Civil Procedure § 877.6 (a)(1) provides, in relevant part, “Any party to an action in which it is alleged that two or more parties are joint tortfeasors [...] shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors [...]” The issue of good faith must be determined on the basis of affidavits served with the notice of hearing, and any counteraffidavits filed in response. (Code Civ. Proc., § 877.6 (b).)

A determination by a court that a settlement was made in good faith bars any other joint tortfeasor or co-obligor from asserting further claims against the settling party for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (Code Civ. Proc. §877.6(c).)

The criteria for the determination of a good faith settlement were originally set out by the California Supreme Court in *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488. That case identified six nonexclusive factors for making a determination of good faith settlement:

- (1) a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability;
- (2) the amount paid in settlement;
- (3) the allocation of settlement proceeds among plaintiffs;
- (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial;
- (5) the financial conditions and insurance limits of settling defendants; and,
- (6) the existence of fraud, collusion, or tortious conduct aimed to injure the interests of nonsettling defendants.

(*Tech-Bilt*, supra, 38 Cal.3d at p. 499.)

A settlor’s percentage of liability is the touchstone question to be considered in a contested good faith settlement proceeding. (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1262-1264 The settling party must present sufficient admissible evidence that will allow the Court to

evaluate the settlement in terms of the factors contemplated by *Tech-Bilt*. (*Id.* at 1263.)

The party asserting the lack of good faith has the burden of proving “that the settlement is so far ‘out of the ballpark’ in relation to the factors [noted above] as to be inconsistent with the equitable objectives of the statute.” (*Tech-Bilt*, *supra*, 38 Cal.3d at 499-500.)

Analysis

The Compass Defendants contend that the request for determination of the good faith of the settlement is premature as they have been unable to complete discovery of the Settling Parties to date. As outlined above, the original complaint was filed on October 20, 2023, and did not include any claims against the Settling Parties. The Settling Parties were not brought into this matter until June 5, 2025, when the Compass Defendants filed their cross-complaint for indemnification/contribution against them. The Settling Parties formally appeared in the matter on August 8, 2025, when they filed their answer.

The Compass Defendants served written discovery demands upon the Settling Parties on November 2, 2025. (Rayfield Decl. ¶ 6.) To date, no responses have been received. (*Ibid.*) They have also attempted to schedule the deposition of Mr. Hoang but have been unable to have that take place. (*Id.* at ¶ 7.) Before they have been able to obtain any discovery from the Settling Parties, the Settling Parties filed their Application for Determination of Good Faith Settlement. As such, the Compass Defendants request a continuance until they can complete this initial discovery directed toward the Settling Parties.

It is appropriate “for the objecting nonsettlor to move for a continuance of the hearing, if necessary, for the purpose of gathering facts, which could include further formal discovery to support its statutory burden of proof as to all *Tech-Bilt* factors nonsettlers placed in issue in order that the matter can be fully and fairly litigated.” (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1265.) “This rule shall apply to all contested good faith settlement hearings, no matter which of the *Tech-Bilt* factors are in issue.” (*Ibid.*)

There are at least two main factors that Cross-Defendants believe are at issue: (1) the proportionality of the settlement amount relative to potential liability, and (2) the existence of collusion between the Settling Parties and Plaintiffs. While the Compass Defendants make a few arguments related to both factors, they believe that they should have an opportunity to at least complete the pending discovery before the Court rules on the motion. Allowing for this discovery to be completed “will ensure that the expanded scope of the hearing dictated by *Tech-Bilt* will be followed, the evidence will be intelligently assessed, and the objectives of *Tech-Bilt* will be attained.” (*City of Grand Terrace*, *supra*, 192 Cal.App.3d at 1251.)

While *City of Grand Terrace* discusses continuing the motion to allow for the discovery, at least one respected treatise notes that the court “may deny the motion without prejudice to being refiled after completion of discovery needed to ensure all parties have the same information required to evaluate the settlement.” (Weil & Brown, et al., Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) ¶ 12:876 *Comment*, p. 106.) This appears to be the better course of action to allow the parties to complete the required discovery, then the Compass Defendants can re-file their contest motion with the benefit of the additional discovery. The Settling Parties can then oppose with access to the same information.

Conclusion

The Compass Defendants' motion to contest the application for order determining good faith settlement is **denied without prejudice**. Compass Defendants shall re-file their motion to contest after the initial written discovery which has already been served on the Settling Parties has been received and the deposition of Mr. Hoang has been completed.

3. 9:00 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
HEARING IN RE: JOINDER TO MOTION TO CONTEST ADGFS
FILED BY: HOMEGUARD INCORPORATED, A CALIFORNIA CORPORATION
TENTATIVE RULING:

See Line 2.

4. 9:00 AM CASE NUMBER: C23-03069
CASE NAME: THERESA SULLIVAN VS. MICHELLE COLETTI
***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS COMPLAINT**
FILED BY: COLETTI, MICHELLE
TENTATIVE RULING:

The unopposed motion of Defendant Coletti to file the Cross-Complaint attached as Exhibit A to the Declaration of Scott E. Radcliffe filed herein on August 4, 2026 is **granted**. Defendant to file the Cross-Complaint within 10 days of service of entry of this order.

5. 9:00 AM CASE NUMBER: C24-01956
CASE NAME: JAMES MARITIME HOLDINGS, INC. VS. MATTHEW MATERAZO
***HEARING ON MOTION IN RE: AN ORDER FINDING MATTHEW C. MATERAZO IN CONTEMPT OF COURT.**
FILED BY:
TENTATIVE RULING:

Notice of withdraw of Motion was filed by Plaintiff's counsel. Motion hearing is vacated.

6. 9:00 AM CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD
***HEARING ON MOTION IN RE: MOTION TO CONSOLIDATE HEARINGS FOR LONG CAUSE SETTING AND FOR COURT REPORTER**
FILED BY: VIGIL, THEODORE JOSEPH
TENTATIVE RULING:

The order granting the Defendant's motion to compel arbitration and stay this case was signed on August 7, 2025, filed August 11, 2025, and Notice of the Entry of the Order was served August 14, 2025.

Once an arbitration motion is granted and a lawsuit stayed, "the action at law sits in the twilight zone